town or particular diſtrict, as a mayor and commonalty, bailiff and burgeſſes, or the like: ſome for the advancement and regulation of manufactures and commerce; as the trading companies of London, and other towns: and ſome for the better carrying on of divers ſpecial purpoſes; as churchwardens, for conſervation of the goods of the pariſh; the college of phyſicians and company of ſurgeons in London, for the improvement of the medical ſcience; the royal ſociety, for the advancement of natural knowlege; and the ſociety of antiquarians, for promoting the ſtudy of antiquities. And among theſe I am inclined to think the general corporate bodies of the univerſities of Oxford and Cambridge muſt be ranked: for it is clear they are not ſpiritual or eccleſiaſtical corporations, being compoſed of more laymen than clergy: neither are they eleemoſynary foundations, though ſtipends are annexed to particular magiſtrates and profeſſors, any more than other corporations where the acting officers have ſtanding ſalaries; for theſe are rewards *pro opera et labore*, not charitable donations only, ſince every ſtipend is preceded by ſervice and duty: they ſeem therefore to be merely civil corporations. The eleemoſynary ſort are ſuch as are conſtituted for the perpetual diſtribution of the free alms, or bounty, of the founder of them to ſuch perſons as he has directed. Of this kind are all hoſpitals for the maintenance of the poor, ſick, and impotent; and all colleges, both *in* our univerſities and *out*[e] of them: which colleges are founded for two purpoſes; 1. For the promotion of piety and learning by proper regulations and ordinances. 2. For imparting aſſiſtance to the members of thoſe bodies, in order to enable them to proſecute their devotion and ſtudies with greater eaſe and aſſiduity. And all theſe eleemoſynary corporations are, ſtrictly ſpeaking, lay and not eccleſiaſtical, even though compoſed of eccleſiaſtical perſons[f], and although they in ſome things partake of the nature, privileges, and reſtrictions of eccleſiaſtical bodies.

[e] Such as at Mancheſter, Eton, Wincheſter, &c.

[f] 1 Lord Raym. 6.

HAVING thus marſhalled the ſeveral ſpecies of corporations, let us next proceed to conſider, 1. How corporations, in general, may be created. 2. What are their powers, capacities, and incapacities. 3. How corporations are viſited. And 4. How they may be diſſolved.

I. CORPORATIONS, by the civil law, ſeem to have been created by the mere act, and voluntary aſſociation of their members; provided ſuch convention was not contrary to law, for then it was *illicitum collegium*[g]. It does not appear that the prince's conſent was neceſſary to be actually given to the foundation of them; but merely that the original founders of theſe voluntary and friendly ſocieties (for they were little more than ſuch) ſhould not eſtabliſh any meetings in oppoſition to the laws of the ſtate.

BUT, with us in England, the king's conſent is abſolutely neceſſary to the erection of any corporation, either impliedly or expreſſly given. The king's implied conſent is to be found in corporations which exiſt by force of the *common law*, to which our former kings are ſuppoſed to have given their concurrence; common law being nothing elſe but cuſtom, ariſing from the univerſal agreement of the whole community. Of this ſort are the king himſelf, all biſhops, parſons, vicars, churchwardens, and ſome others; who by common law have ever been held (as far as our books can ſhew us) to have been corporations, *virtute officii:* and this incorporation is ſo inſeparably annexed to their offices, that we cannot frame a complete legal idea of any of theſe perſons, but we muſt alſo have an idea of a corporation, capable to tranſmit his rights to his ſucceſſors, at the ſame time. Another method of implication, whereby the king's conſent is preſumed, is as to all corporations by *preſcription*, ſuch as the city of London, and many others[h], which have exiſted as corporations, time

[g] *Ff.* 47. 22. 1. *Neque ſocietas, neque collegium, neque hujuſmodi corpus paſſim omnibus habere conceditur; nam et legibus, et ſenatus conſultis, et principalibus conſtitutionibus ea res coercetur. Ff.* 3. 4. 1.

[h] 2 Inſt. 330.

whereof

whereof the memory of man runneth not to the contrary; and therefore are looked upon in law to be well created. For though the members thereof can ſhew no legal charter of incorporation, yet in caſes of ſuch high antiquity the law preſumes there once was one; and that by the variety of accidents, which a length of time may produce, the charter is loſt or deſtroyed. The methods, by which the king's conſent is expreſſly given, are either by act of parliament or charter. By act of parliament, of which the royal aſſent is a neceſſary ingredient, corporations may undoubtedly be created[i]: but it is obſervable, that moſt of thoſe ſtatutes, which are uſually cited as having created corporations, do either confirm ſuch as have been before created by the king; as in the caſe of the college of phyſicians, erected by charter 10 Hen. VIII[k], which charter was afterwards confirmed in parliament[l]; or, they permit the king to erect a corporation *in futuro* with ſuch and ſuch powers; as is the caſe of the bank of England[m], and the ſociety of the Britiſh fiſhery[n]. So that the immediate creative act is uſually performed by the king alone, in virtue of his royal prerogative[o].

ALL the other methods therefore whereby corporations exiſt, by common law, by preſcription, and by act of parliament, are for the moſt part reducible to this of the king's letters patent, or charter of incorporation. The king's creation may be performed by the words "*creamus*, *erigimus*, *fundamus*, *incorporamus*," or the like. Nay it is held, that if the king grants to a ſet of men to have *gildam mercatoriam*, a mercantile meeting or aſſembly[p], this is alone ſufficient to incorporate and eſtabliſh them for ever[q].

10 Rep. 29. 1 Roll. Abr. 512.

[k] 8 Rep. 114.

[l] 14 & 15 Hen. VIII. c. 5.

[m] Stat. 5 & 6 W. & M. c. 20.

[n] Stat. 23 Geo. II. c. 4.

[o] See page 263.

[p] *Gild* ſignified among the Saxons a fraternity, derived from the verb ȝilðan to pay, becauſe every man paid his ſhare towards the expenſes of the community. And hence their place of meeting is frequently called the *Gild-hall*.

[q] 10 Rep. 30. 1 Roll. Abr. 513.

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THE parliament, we obſerved, by it's abſolute and tranſcendent authority, may perform this, or any other act whatſoever: and actually did perform it to a great extent, by ſtatute 39 Eliz. c. 5. which incorporated all hoſpitals and houſes of correction founded by charitable perſons, without farther trouble: and the ſame has been done in other caſes of charitable foundations. But otherwiſe it is not uſual thus to intrench upon the prerogative of the crown, and the king may prevent it when he pleaſes. And, in the particular inſtance before-mentioned, it was done, as ſir Edward Coke obſerves [r], to avoid the charges of incorporation and licences of mortmain in ſmall benefactions; which in his days were grown ſo great, that it diſcouraged many men to undertake theſe pious and charitable works.

THE king may grant to a ſubject the power of erecting corporations [s], though the contrary was formerly held [t]: that is, he may permit the ſubject to name the perſons and powers of the corporation at his pleaſure; but it is really the king that erects, and the ſubject is but the inſtrument: for though none but the king can make a corporation, yet *qui facit per alium, facit per ſe* [v]. In this manner the chancellor of the univerſity of Oxford has power by charter to erect corporations; and has actually often exerted it, in the erection of ſeveral matriculated companies, now ſubſiſting, of tradeſmen ſubſervient to the ſtudents.

WHEN a corporation is erected, a name muſt be given it; and by that name alone it muſt ſue, and be ſued, and do all legal acts; though a very minute variation therein is not material [u]. Such name is the very being of it's conſtitution; and, though it is the will of the king that erects the corporation, yet the name is the knot of it's combination, without which it could not perform it's corporate functions [w]. The name of incorporation, ſays

[r] 2 Inſt. 722.
[s] Bro. *Abr. tit. Prerog.* 53. Viner. *Prerog.* 88. pl. 16.
[t] Yearbook, 2 Hen. VII. 13.
[v] 10 Rep. 33.
[u] 10 Rep. 122.
[w] Gilb. Hiſt. C. P. 182.

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